

24STCV23833 24STCV23833

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-06-24

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Case Number: 24STCV23833 Hearing Date: June 24, 2026 Dept: 507

Tentative

Ruling

Judge Nicholas

F. Daum, Department 507

HEARING

DATE: June 24, 2026 TRIAL DATE: NOT SET

CASE: Francisco Alvarez, et al. v. West Covina

Auto Retail, Inc., d/b/a Norm Reeves Honda Superstore West Covina

CASE

NO.: 24STCV23833

MOTION TO CONSOLIDATE

ARBITRATION PROCEEDINGS

MOVING

PARTY: Defendant West Covina Auto Retail,

Inc., d/b/a Norm Reeves Honda Superstore West Covina.

RESPONDING

PARTY(S): Plaintiffs

Francisco Alvarez and Joseph Kim

TENTATIVE RULING:

West

Covina Auto Retail's Motion to Consolidate Arbitration Proceedings is DENIED.

Moving Party to give notice.

BACKGROUND

This

is a wage and hour action. Plaintiffs allege that they were systematically

underpaid and deprived of benefits by West Covina Auto Retail,

DISCUSSION:

West Covina Auto Retail moves to consolidate Plaintiffs'

arbitration with several other pending arbitration proceedings pursuant to Code

of Civil Procedure section 1281.3. The Court denies the motion. Under controlling precedent and the Federal

Arbitration Act, issues of class arbitrability go to the arbitrator, not the

Court.

Analysis

Section 1281.3 states:

A party to an arbitration

agreement may petition the court to consolidate separate arbitration

proceedings, and the court may order consolidation of separate arbitration

proceedings when:

(1) Separate arbitration

agreements or proceedings exist between the same parties; or one party is a

party to a separate arbitration agreement or proceeding with a third party; and

(2) The disputes arise from the

same transactions or series of related transactions; and

(3) There is common issue or

issues of law or fact creating the possibility of conflicting rulings by more

than one arbitrator or panel of arbitrators.

(Code

Civ. Proc. § 1281.3.) This provision, however, does not apply to this action. The Court has already decided that the

Federal Arbitration Act governs the agreement. (See RJN Exh. 3 [March 21, 2025

Minute Order].) Under controlling California precedent applying the Federal

Arbitration Act, questions regarding the availability of class or collective

arbitration proceedings are reserved to the arbitrator, not the Court, absent

an express contractual provision to the contrary. (Sandquist v. Lebo

Automotive, Inc. (2016) 1 Cal.5th 233, 260.) West Covina Auto Retail's

statement that a party may be forced into a coordinated arbitration proceeding with a stranger to that party's claim, based on *Keating v. Superior Court* (1982) 31 Cal.3d 584, 612, is no longer good law. (Sandquist, supra, 1 Cal.5th at fn.2.)

The relevant portion of the

Arbitration Agreement concerning class and collective arbitration states:

This Agreement shall not be

construed to allow or permit the consolidation or joinder of other claims or

controversies involving any other employees, or permit such claims or

controversies to proceed as a class action, collective action, or any similar

representative action. No arbitrator shall have the authority under this

agreement to order any such class or collective action.

The

Arbitration Agreements in this case do not expressly assign the availability of

class, collective, or consolidation of arbitration to the Court. In fact, the

Arbitration Agreements categorically and expressly forbid consolidation, even

by the arbitrator. (RJN Exh. 2.1.) Under controlling authority, this language

is dispositive. West Covina Auto Retail is not entitled to consolidation of

arbitration proceedings.

Request

for Judicial Notice

Plaintiffs request that the Court take

judicial notice of certain documents. The Court rules as follows:

1.

Petition

to Compel Arbitration between West Covina Auto Retail and Bryan Alfonso Garcia,

et al. DENIED. (Gbur v. Cohen

(1979) 93 Cal.App.3d 296, 301 (“[J]udicial notice . . . is always confined to

those matters which are relevant to the issue at hand.”).)

2. Declaration of Alma Padilla In

Support of Motion to Compel Arbitration in this Action. GRANTED. (Evid. Code §

452(d).)

3. The Court's March 21, 2025

Minute Order. GRANTED (Evid. Code § 452(d).)

CONCLUSION:

Accordingly, West Covina Auto Retail's Motion

to Consolidate Arbitration Proceedings is DENIED.

Moving Party to give notice.

IT IS

SO ORDERED.

Dated: June 24, 2026 _____

Nicholas

F. Daum

Judge

of the Superior Court

Any party may submit on the

tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All

interested parties must be copied on the email. It should be noted that if you

submit on a tentative ruling the court will still conduct a hearing if any

party appears. By submitting on the tentative you have, in essence, waived your

right to be present at the hearing, and you should be aware that the court may

not adopt the tentative, and may issue an order which modifies the tentative

ruling in whole or in part.